

Senate File 297

S-3115

1 Amend Senate File 297 as follows:

2 1. Page 1, by striking lines 5 through 7 and inserting
3 <for the procurement of goods or services entered into by the
4 department or any other state agency pursuant to this part. A
5 state agency's contract that includes>

6 2. By striking page 1, line 34, through page 2, line 1,
7 and inserting <litigation other than an appropriate state or
8 federal court sitting in Iowa.>

9 3. Page 3, by striking lines 12 through 15 and inserting
10 <contract shall be brought and maintained in an appropriate
11 state or federal court sitting in Iowa.>

12 4. Page 3, before line 16 by inserting:

13 <Sec. ____ NEW SECTION. 8A.311E State purchasing contracts
14 — **waiver**.

15 If the director determines that a necessary good or service
16 is impossible to procure due to a requirement of section
17 8A.311C or 8A.311D, the director may waive the requirement
18 to the extent necessary to obtain the good or service. A
19 state agency requesting a waiver shall, at a minimum, provide
20 sufficient evidence showing that the state will suffer an
21 interruption in business operations or other irreparable harm
22 if the state agency cannot procure the good or service, and
23 that the state agency has exhausted all reasonable steps to
24 prevent such harm, including attempting to procure substitute
25 goods or services. The director may require the submission of
26 additional evidence at the director's discretion. A waiver
27 must be as narrow as possible to allow the procurement of the
28 necessary good or service.>

29 5. By renumbering as necessary.

KEN ROZENBOOM